



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

MAY -6 2002

DOT-E 12898

EXPIRATION DATE: March 31, 2004
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(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: SWS Environmental First Response, Inc.
Panama City Beach, FL
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of a non-DOT specification, carbon steel, full removable head, salvage cylinder of 50 gallon water capacity, for overpacking a damaged or leaking cylinder of hazardous materials. This exemption provides no relief from any Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.34(d) in that the salvage cylinder does not have a pressure relief device; §§ 173.201, 173.202, 173.203, 173.226, 173.227, 173.302, and 173.304 in that a non-DOT specification cylinder is not authorized, except as specified herein.
5. BASIS: This exemption is based on the application of SWS Environmental First Response dated December 17, 2001, submitted in accordance with § 107.105 and the public proceeding thereon and supplemental information dated April 5 and April 15, 2002.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identi- fication Number	Packing Group
Hazardous materials, authorized in DOT specification cylinders (except those specified below)	Class 3, Division 2.1, 2.2, 2.3, or 6.1 or Class 8 materials, as appropriate	as appropriate	as appropriate

The following hazardous materials are not authorized for shipment under this exemption: Acetylene, Acetic acid, glacial, Bromine and Hydrochloric acid.

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is a non-DOT specification, carbon steel salvage cylinder of welded construction with full removable head, with provisions for securely positioning the damaged cylinder contained within. The salvage cylinder is skid mounted. Each salvage cylinder must be designed, constructed and stamped in accordance with Section VIII of the ASME Code for "lethal" service and a maximum allowable working pressure of 700 psig. The cylinder must be in accordance with PROCO, Inc.'s Drawing No. 30167 dated May 21, 1986, on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA) and the following:

Maximum volume	50 gallon water capacity
Material (Shell)	SA-106B seamless carbon steel
(Heads)	SA-105 forged carbon steel
Design stress	Per ASME Code, design margin minimum 4:1
Outside diameter	14-1/2 inches
Length	84" inches
Sidewall thickness	3/8-inch, nominal
Service pressure (MAWP)	700 psig
Test pressure	1050 psig
Openings on bolted head	One-1/4" thred-o-let for gauge
	One-1/2" thred-o-let for blow off
	One-1" thred-o-let for pressure relief valve
Pressure relief devices	none

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Welded attachments 4 - lifting lugs
 2 - saddles with skid

b. TESTING - Each salvage cylinder must be visually inspected (internally and externally) and hydrostatically retested once every 2 years at a test pressure of at least 1,050 psig. The visual inspections must be performed in accordance with the Compressed Gas Association's Pamphlet C-6. The retest and inspection must be made by an employee that is familiar with the salvage cylinder and is trained and experienced in the use of the inspection and testing equipment. Records of retest must be made available to a DOT representative upon request.

c. OPERATIONAL CONTROLS -

(1) Salvage cylinders are authorized for use only with damaged or leaking DOT specification cylinders whose contents are limited in pressure and volume so that if totally discharged into the salvage cylinder, the pressure in the salvage cylinder will not exceed: (1) 700 psig at 70°F for non-liquefied gases, and (2) 700 psig at 130°F for liquefied gases.

(2) Each salvage cylinder must be cleaned and purged after each use and must be visually inspected (internally and externally). The visual inspections must be performed in accordance with the Compressed Gas Association's Pamphlet C-6.

(3) Drivers and persons who load, unload or transport these cylinders must have been trained in handling, loading and unloading the cylinder. The loaded salvage cylinder must be delivered to the consignor or consignee as soon as practicable.

(4) Transportation is limited to motor vehicles owned or leased by SWS Environmental First Response, Inc. or owned or leased by contract carriers employed by SWS Environmental First Response, Inc.

8. SPECIAL PROVISIONS.

a. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

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b. A person who is not a holder of this exemption who receives a packaging covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

c. Each salvage cylinder must be plainly marked on opposite sides near the middle, in letters at least 2 inches high on a contrasting background "DOT-E 12898" and "SALVAGE CYLINDER".

d. Each salvage cylinder must be labeled as prescribed for its lading.

e. Each salvage cylinder must be secured to the motor vehicle by a securement system that conforms with the requirements contained in 49 CFR §§ 393.100 to 393.106.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

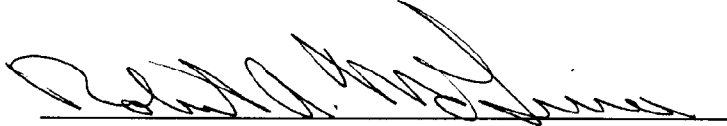
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: SStaniszewski